

COMMITTEE ON JUDICIARY
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1540
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 18, Arizona Revised Statutes, is
3 amended by adding section 13-1821, to read:

4 13-1821. Theft of motor fuel; classification; definition

5 A. A PERSON COMMITS THEFT OF MOTOR FUEL IF THE PERSON WILFULLY,
6 KNOWINGLY AND WITHOUT AUTHORIZATION:

7 1. BREACHES A RETAIL FUEL DISPENSER OR ACCESSES ANY INTERNAL
8 PORTION OF A RETAIL FUEL DISPENSER.

9 ~~[2. POSSESSES ANY DEVICE THAT IS CONSTRUCTED FOR THE PURPOSE OF~~
10 ~~FRAUDULENTLY ALTERING, MANIPULATING OR INTERRUPTING THE NORMAL OPERATION~~
11 ~~OF A RETAIL FUEL DISPENSER.]~~

12 ~~[3.]~~ [2.] PHYSICALLY TAMPERS WITH, MANIPULATES, REMOVES, REPLACES
13 OR INTERRUPTS ANY MECHANICAL OR ELECTRONIC COMPONENT THAT IS LOCATED ON
14 THE INTERNAL OR EXTERNAL PORTION OF A RETAIL FUEL DISPENSER.

15 ~~[4.]~~ [3.] USES ANY FORM OF ELECTRONIC COMMUNICATION TO FRAUDULENTLY
16 ALTER, MANIPULATE OR INTERRUPT THE NORMAL OPERATION OF A RETAIL FUEL
17 DISPENSER.

18 B. A VIOLATION OF SUBSECTION A, PARAGRAPH 1 ~~[OR 2]~~ OF THIS SECTION
19 IS A CLASS 6 FELONY, EXCEPT THAT IF THE VIOLATION RESULTS IN A PERSON
20 OBTAINING MOTOR FUEL IT IS A CLASS 5 FELONY.

21 C. A VIOLATION OF SUBSECTION A, PARAGRAPH ~~[3 OR 4]~~ [2 OR 3] OF THIS
22 SECTION IS A CLASS 5 FELONY.

23 D. FOR THE PURPOSES OF THIS SECTION, "MOTOR FUEL" HAS THE SAME
24 MEANING PRESCRIBED IN SECTION 28-5601.

25 Enroll and engross to conform

26 Amend title to conform

And, as so amended, it do pass

1540JUDICIARY.docx
03/18/2026
11:15 AM
H: NM/l's
130QEATEH

QUANG H. NGUYEN
CHAIRMAN